

25LBCV01897 25LBCV01897

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-17

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Case Number: 25LBCV01897 Hearing Date: September 17, 2026 Dept: S27

1. Background

Facts

Plaintiff sues Defendant for violations of Song-Beverly, breach of implied warranty, and fraud – concealment.

2. Motion

for Summary Adjudication

a. Procedural

Defect

Defendant's notice of motion and separate statement do not comply with CRC 3.1350(b) and (h), which require the notice of motion to set forth each issue to be adjudicated and the separate statement to repeat the issues verbatim.

Department S27 has admonished Honda of this defect myriad times in the past. Because the issues presented by way of this motion are simple and the defect does not defeat the Court's ability to rule on the motion, the Court will rule despite the defect. Honda is advised that Department S27 will summarily deny any motion with this defect filed after today's date, and may deny previously filed motions that suffer from this defect if it renders ruling on the motion difficult.

b. Request

for Judicial Notice

Defendant requests judicial notice of Plaintiff's complaint. The Court takes judicial notice of the fact that the complaint exists and alleges what it alleges. The Court does not judicially notice, as Defendant appears to suggest, that the lack of detail in the complaint is conclusive proof that such detail does not exist. This will be discussed further below.

c. Breach
of Implied Warranty

Plaintiff purchased her automobile on 12/27/19 and filed suit on 6/26/25.

Defendant contends the implied warranty runs for one year from the date of purchase and the four-year statute of limitations runs from the date the defect is discovered, which must be during the one-year period, rendering the absolute last possible day for filing this action to have been 12/27/24.

Defendant relies on Civil Code

§1791.1 and *Soro v. FCA US, LLC*, 2026 WL 473050 to support its position. §1791.1(c) makes clear that an implied warranty has a duration of no more than one year from the date of purchase. The statute of limitations on a claim for breach of an implied warranty of merchantability is four years. (*Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.) The claim “accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made. . . .” (Commercial Code § 2725, subd. (2).) In short, Section 2725 of the Commercial Code is clear: there is no delayed-discovery rule with respect to accrual of a claim for breach of an implied warranty. (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal. App. 4th 116, 129, 134.) If the contract expressly extends the warranty to “future performance” of the goods, then the claim accrues when the breach is discovered or should have been discovered. But absent such an explicit extension, accrual occurs at the time of the breach, which is the time of delivery of the goods in question. (*Id.* at p. 129.)

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Plaintiff

contends that *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297 stands for the proposition that the statute of limitations on a claim for breach of the implied warranty of merchantability of a consumer good is tolled

for the duration of the period of the express warranty on the good when the good's defect is latent. That is not so. The Court in *Mexia* said flat out that "[i]n the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (Id. at 1304-1305.)

The motion for summary adjudication of the cause of action for breach of implied warranty is therefore granted.

d. Fraud

-- Concealment

Defendant also argues the fraud cause of action is barred by the statute of limitations. Defendant concedes the delayed discovery rule applies to fraud claims, but argues Plaintiff has not pled facts sufficient to support operation of the rule. Notably, Defendant did not demur to the complaint in this regard. Plaintiff alleges the delayed discovery rule applies. This is sufficient, on a summary adjudication motion, to require Defendant to disprove the allegation. While Defendant could have demurred based on lack of specificity, it failed to do so. It also failed to provide any evidence at all to defeat the allegation. The motion for summary adjudication of this cause of action is therefore denied.

e. Conclusion

The motion for summary adjudication of the breach of implied warranty cause of action is granted. The motion for summary adjudication of the fraud cause of action is denied.

Defendant is ordered to give notice.